

ASCII MASTER FLOW – PANEL 1/9: 1934-1946: the route to a constitution-making body

1934 M.N. Roy advances the Constituent Assembly idea

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1935 Congress formally demands a body elected on adult franchise

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1938 Nehru: Constitution must be framed without outside interference

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1940 August Offer accepts the principle of Indian constitution-making

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1942 Cripps proposal offers post-war constitution-making

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1946 Cabinet Mission supplies the operative scheme

+-- indirectly elected provincial representatives

+-- princely-state nominees

+-- community allocation within provincial seats

+-- population ratio broadly one seat per million

SHIFT: nationalist claim -> British concession -> negotiated institutional design.

ASCII MASTER FLOW – PANEL 2/9: Composition changed with Partition; authority changed with Independence

CABINET MISSION PLAN: TOTAL 389

- +-- British Indian provinces 292
- +-- Chief Commissioners' provinces 4
- +-- princely states 93

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PARTITION: members from areas assigned to Pakistan withdraw

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RECONSTITUTED ASSEMBLY: 299

- +-- provinces 229
- +-- princely states 70

9 Dec 1946: first sitting under Cabinet Mission framework

15 Aug 1947: sovereign constitution-maker + Dominion legislature

26 Nov 1949: Constitution adopted

26 Jan 1950: provisional Parliament role begins under the Constitution

TRAP: indirect election limits representativeness; it does not erase legal authorship.

ASCII MASTER FLOW – PANEL 3/9: Committee architecture: distributed authorship, not seven-person mythology

CONSTITUENT ASSEMBLY

- +-- Union Powers Committee – Jawaharlal Nehru
- +-- Union Constitution Committee – Jawaharlal Nehru
- +-- Provincial Constitution Committee – Vallabhbhai Patel
- +-- Advisory Committee – Vallabhbhai Patel
 - | +-- Fundamental Rights Sub-Committee – J.B. Kripalani
 - | +-- Minorities Sub-Committee – H.C. Mookherjee
- +-- Drafting Committee – B.R. Ambedkar
 - +-- converts decisions and reports into coherent clauses

B.N. RAU: comparative research -> initial draft -> technical advice

ASSEMBLY: committee report -> debate -> amendment -> vote -> adopted text

ASCII MASTER FLOW – PANEL 4/9: Drafting pipeline from Objectives Resolution to commencement

13 DEC 1946 Objectives Resolution moved

22 JAN 1947 Resolution adopted

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committee reports + B.N. Rau draft

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29 AUG 1947 Drafting Committee appointed

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FEB 1948 Draft Constitution published for comments

OCT 1948 revised draft

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READING 1: general discussion

READING 2: clause-by-clause debate and amendments

READING 3: final consideration and passage

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26 NOV 1949 adopted, enacted and given to ourselves

24 JAN 1950 final signing

26 JAN 1950 remaining provisions commence

ASCII MASTER FLOW – PANEL 5/9: Debate map: rights, federalism, executive and social revolution

CONSTITUTIONAL CHOICE

- +-- RIGHTS: liberty + equality + remedies
 - | versus preventive powers, public order and social reform
- +-- FEDERALISM: provincial autonomy
 - | versus Partition-era need for an effective Union
- +-- EXECUTIVE: parliamentary responsibility
 - | versus fear of instability and concentrated leadership
- +-- MINORITIES: cultural and educational protection
 - | versus rejection of separate political electorates
- +-- SOCIAL REVOLUTION
 - enforceable rights + Directive Principles + affirmative action

RESULT: political democracy was joined to an unfinished social transformation.

ASCII MASTER FLOW – PANEL 6/9: Borrowed provisions became Indian constitutional adaptations

SOURCE	INDIAN ADAPTATION
United Kingdom	cabinet responsibility + parliamentary government
United States	Fundamental Rights + judicial review + impeachment ideas
Ireland	Directive Principles + presidential nomination method
Canada	federation with strong Centre + residuary Union power
Australia	Concurrent List + trade provisions + joint sitting
Germany	Emergency ideas, constitutionally recast
South Africa	amendment elements + Rajya Sabha election method
GoI Act 1935	machinery stripped of imperial sovereignty

TEST: borrowed device + Indian problem + altered setting = Indian constitutional rule

VERDICT: sources supplied techniques; the Assembly supplied hierarchy and legitimacy.

ASCII MASTER FLOW – PANEL 7/9: Criticism and evidence-led reply

OBJECTION: no universal adult franchise election

-> indirect and limited, yet politically diverse and publicly deliberative

OBJECTION: Congress domination

-> organisation enabled coordination; committees and dissent shaped outcomes

OBJECTION: lawyer-made and over-legal

-> precision mediated federal, rights and transition conflicts

OBJECTION: copied Constitution

-> borrowing was selective, recombined and India-specific

OBJECTION: social under-representation

-> real exclusions remain; women, minorities, Dalits and regions still intervened

OBJECTION: excessive time

-> 2 years, 11 months, 18 days covered Partition, integration and clause scrutiny

VERDICT: legitimacy rests on process quality and constitutional performance.

ASCII MASTER FLOW – PANEL 8/9: Debates, original intent and the living text

INTERPRETIVE ORDER

1. constitutional text
2. structure and settled doctrine
3. purpose and historical context
4. Constituent Assembly Debates as persuasive evidence

DEBATES CAN

- +-- reveal the mischief addressed
- +-- clarify rejected alternatives
- +-- illuminate institutional purpose

DEBATES CANNOT

- +-- override enacted words
- +-- freeze broad guarantees in 1949 expectations
- +-- convert one speaker's view into collective intent

Original understanding disciplines interpretation; constitutional supremacy permits growth.

ASCII MASTER FLOW – PANEL 9/9: Exact 10/15-mark architecture: was the Assembly representative and original?

10 MARKS / 150 WORDS

1. State Cabinet Mission basis and indirect-election limitation.
2. Give 389 -> 299 change and 15 August sovereignty shift.
3. Show committees, Rau, Drafting Committee and full Assembly.
4. Test one criticism against one process fact.
5. Conclude: imperfect social representation, substantial deliberative authorship.

15 MARKS / 250 WORDS

1. Trace demand from 1934 to Cabinet Mission 1946.
2. Explain composition, Partition and dual legislative role.
3. Map Resolution -> committees -> draft -> three readings.
4. Use two debate clusters and one adaptation example.
5. Evaluate dominance, exclusions, time and legalism.
6. Distinguish persuasive debates from supreme enacted text.
7. Conclude with negotiated legitimacy, not hero-centred authorship.